

COLLECTION · SELLERS

The Seller's Declaration

*Avoid latent defects and lawsuits — sell with
peace of mind*

READ BEFORE YOU BEGIN

Important notice

This guide is provided for informational and educational purposes only. It offers general information about real estate in Quebec and does not constitute personalized real estate, legal, tax or financial advice. As every real estate situation is different, it is recommended that you consult the appropriate professionals before making any decision regarding a real estate transaction.

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The Seller's Declaration

Avoid latent defects and lawsuits — sell with peace of mind

In Quebec, a seller has legal obligations toward the buyer, notably not to hide defects. The seller's declaration is the tool that protects you... provided it's filled out honestly and completely.

This guide explains the legal warranty of quality, the notion of a latent defect, the role of the seller's declaration, and how to reduce your risk of a lawsuit after the sale.

Informational content, not legal advice: validate your situation with your broker and your notary. Each chapter ends with a lined “My notes” page.

The seller's declaration isn't a formality: it's your shield against lawsuits after the sale. This guide explains the legal warranty, how to fill out the declaration to your advantage, reduce your risk and react if a problem arises.

The through-line: transparency protects the seller as much as the buyer.

CHAPTER

The legal warranty of quality

Understanding what the seller commits to by default.

In Quebec, a real estate sale generally comes with a legal warranty of quality: the seller guarantees the property is free of latent defects that would make it unfit for its use or diminish its usefulness so much that the buyer wouldn't have bought it, or not at that price.

A latent defect is a serious defect, not apparent on a normal examination, existing before the sale and unknown to the buyer. If such a defect appears after the sale, the buyer may have recourse against the seller.

By default, a sale comes with a legal warranty of quality: you're answerable for latent defects that made the property unfit for its use. Understanding it means grasping why transparency protects the seller as much as the buyer.

EMILIE'S TIP

Selling “without legal warranty, at the buyer's own risk” exists, but it changes everything for the buyer (and often the price). Never include such a clause without understanding its consequences with your notary.

CHAPTER

The seller's declaration

Using this transparency tool to your advantage.

The seller's declaration is a form where you record what you know about the property: past infiltration, repairs, renovations (with or without permits), known problems, presence of vermiculite, a tank, etc. Well filled out, it informs the buyer and strongly reduces the risk of a dispute.

- Disclose what you know, honestly and completely.
- Conceal nothing: hiding a known problem is the best way to expose yourself to a lawsuit.
- When in doubt about a point, better to mention it than ignore it.

The seller's declaration is your transparency tool: you record what you know (repairs, incidents, infiltration, disputes). Well filled out, it strongly reduces your risk of a lawsuit, because the buyer buys with full knowledge.

EMILIE'S TIP

Transparency is your best insurance. An informed buyer who buys with full knowledge has far less recourse than one who discovers a problem you knew about and didn't declare.

CHAPTER

Reducing your risk of a lawsuit

Protecting yourself before, during and after the sale.

- Gather your proof: repair invoices, permits, expert reports.
- Encourage the buyer to have an inspection: a defect “apparent” on a normal inspection isn't a latent defect.
- Answer questions honestly and make no false statements.
- Keep a copy of all the documents and the signed declaration.

A complete file and full transparency are your best bulwarks against a claim after the sale.

Reduce your risk upfront: gather invoices, permits, reports and warranties; declare any known problem; keep proof. A complete file is your best defence if a dispute arises after the sale.

EMILIE'S TIP

Keep all your invoices and reports, even after the sale. If a dispute arises, proving that you repaired properly or disclosed a problem makes all the difference.

CHAPTER

What to do if a problem arises

Reacting correctly to a claim.

If a buyer invokes a latent defect after the sale, they generally must notify you (often in writing) and give you the chance to observe the problem before undertaking any work. Don't react in a panic.

- Consult a professional quickly (notary, lawyer) to know your rights.
- Don't admit or settle anything hastily without advice.
- Rely on your declaration and your proof.

If a buyer invokes a latent defect after the sale, the procedure matters: they generally must notify you quickly and let you observe before doing any work. Don't react alone in a panic — document and consult before committing.

EMILIE'S TIP

Faced with a claim, the worst reaction is to panic and act alone. Quick legal advice keeps you from admitting a liability you may not have.

CHAPTER

Filling out your declaration honestly

Declaring what you know, correctly.

The seller's declaration is a key document: it records what you **know** about the property. The golden rule: **transparency**.

- Mention the **known problems**, past and present (infiltration, repairs, incidents).
- Don't **conceal** a known defect: it's the number-one source of lawsuits.
- When in doubt, **write it down** rather than staying silent.
- Keep the **proof** of the work done.

An honest, complete declaration is your best protection against a dispute after the sale.

The golden rule: when in doubt, declare. Staying silent about a known problem “so as not to hurt the sale” is exactly what leads to costly lawsuits. An honest, complete declaration is the seller's best protection.

EMILIE'S TIP

When in doubt, declare. Staying silent about a problem you know of “so as not to hurt the sale” is exactly what leads to costly lawsuits. Transparency protects the seller as much as the buyer.

IN PRACTICE

Action plan

Your next steps, concretely.

This week

1. List all known problems, repairs and renovations.
2. Gather invoices, permits and expert reports.

Within 30 days

1. Fill out the seller's declaration honestly, with my broker.
2. Encourage the buyer to have the property inspected.

Next

1. Keep a copy of all the documents after the sale.

Before selling

1. Gather invoices, permits and reports of the work done.
2. Fill out the declaration honestly, declaring any known problem.

REFERENCES

Resources & glossary

- Legal warranty of quality: protection of the buyer against latent defects.
 - Latent defect: a serious defect, not apparent, prior to and unknown to the buyer.
 - Seller's declaration: a form recording what the seller knows about the property.
 - Sale without legal warranty: a clause that transfers the risk to the buyer.
 - Proof: invoices, permits and reports kept to protect yourself.
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- Legal warranty: the seller's liability for latent defects, by default.
 - Latent defect: a non-apparent defect making the property unfit for its use.
 - Seller's declaration: a written record of what the seller knows.
 - Sale without legal warranty: a sale “at the buyer's own risk”, to be framed.
 - Proof: invoices and reports kept to protect yourself from a claim.

GOING FURTHER

Quiz — test your knowledge

1. The legal warranty of quality protects against:

- A) Apparent defects
- B) Serious latent defects prior to the sale
- C) The weather
- D) Taxes

2. A latent defect is a defect that is:

- A) Visible to the eye
- B) Not apparent on a normal examination, serious and prior
- C) Created by the buyer
- D) Unimportant

3. The seller's declaration serves to:

- A) Set the price
- B) Record what you know about the property
- C) Pay the notary
- D) Insure the house

4. Hiding a known problem:

- A) Protects you
- B) Exposes you to a lawsuit
- C) Raises the price
- D) Has no effect

5. A defect detected during a normal inspection:

- A) Remains a latent defect
- B) Isn't a latent defect
- C) Doubles the warranty
- D) Cancels the sale

6. A good protective reflex is:

- A) Throwing out your invoices
- B) Keeping invoices, permits and reports
- C) Documenting nothing
- D) Lying in the declaration

7. If the buyer invokes a defect, they generally must:

- A) Do the work first
- B) Notify you and let you observe
- C) Sue you without notice
- D) Do nothing

8. Faced with a claim, you must:

- A) Panic and settle alone
- B) Consult a professional quickly
- C) Ignore it
- D) Admit everything

Answer key

- 1. **B** — A serious, non-apparent, prior and unknown defect (ch. 1).
- 2. **B** — These criteria define it (ch. 1).
- 3. **B** — It's a transparency tool (ch. 2).
- 4. **B** — Concealment is the main risk (ch. 2).
- 5. **B** — An apparent defect isn't "latent" (ch. 3).
- 6. **B** — Proof protects you in a dispute (ch. 3).
- 7. **B** — A notice and the chance to observe are required (ch. 4).
- 8. **B** — Legal advice avoids admitting undue liability (ch. 4).

Signé PAR Em

*Thank you for reading. May this guide help you
decide with confidence, with all the information
in hand.*

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